

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NO. 140P5426R0007	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 04/09/2026	PAGE 1	OF 36	PAGES
	IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					

4. CONTRACT NO.		5. REQUISITION/PURCHASE REQUEST NO. 0044035723	6. PROJECT NO. 140P5426R0007
7. ISSUED BY NPS, SER - South MABO 40001 SR 9336 Homestead FL 33034	CODE PSS	8. ADDRESS OFFER TO Yujeiry Eusebio yujeiry_eusebio@ios.doi.gov	
9. FOR INFORMATION CALL	a. NAME Yujeiry Eusebio	b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 4708190959	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

Proposals for the replacement of generators and components within Everglades National Park (EVER) must be submitted via email to yujeiry_eusebio@ios.doi.gov. This solicitation is a total small business set aside.

Contract Type: Firm Fixed Price Construction.

Solicitation# 140P5426R0007

Date of Issuance: April 9, 2026

Proposal Due Date: June 5, 2026, at 4:00 p.m. ET

Requisition #: 0044035723

Contractors are responsible for reviewing the solicitation in its entirety, specifically Sections L and M, which cover how the proposal must be put together before submission and how they will be evaluated. A past performance questionnaire is attached and should be distributed to past clients. Past clients are instructed to send the questionnaires directly to Yujeiry_eusebio@ios.doi.gov after completion. Prospective contractors must provide the company's name and complete address, including street, city, state, zip code, phone number, email address, and SAM.gov UEI number on their proposal cover page. Prospective contractors must also include the solicitation number in their proposals. A Bid Guarantee (Bid Bond) is required to be submitted with your proposal at 20% of the bid total.

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>364</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See _____).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☒ YES ☐ NO	12b. CALENDAR DAYS 10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 1600 (hour) local time 06/05/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 0 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NO. (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS 

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY PSS DOI, NPS, SER - South MABO 40001 SR 9336 Homestead FL 33034	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>0</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print)	
		Deryck Cruz	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA	31c. DATE
		BY	

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140P5426R0007	PAGE 3 OF 36

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Delivery: 06/30/2027 Delivery Location Code: 0011283047 NPS, Everglades NP 40001 State Road 9336 Homestead FL 33034-6733 US Period of Performance: 07/01/2026 to 06/30/2027				
00010	Replace Generator Pine Island Maintenance Yard Product/Service Code: 6115 Product/Service Description: GENERATORS AND GENERATOR SETS, ELECTRICAL				
00020	Replace Generators Daniel Beard Center Product/Service Code: 6115 Product/Service Description: GENERATORS AND GENERATOR SETS, ELECTRICAL				
00030	Replace Generator at Visitor Center Product/Service Code: 6115 Product/Service Description: GENERATORS AND GENERATOR SETS, ELECTRICAL				

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A – Solicitation Form

PROJECT TITLE: Replace Generators & Components

SITE LOCATION: Everglades National Park (EVER)

NOTICE TO PROSPECTIVE OFFERORS

This solicitation is being set aside as a **Total Small Business** competitive action. Bidding contractors must have this designation in their SAM.gov registration. If in review it is determined they lack this designation, the submitted proposal will be removed from consideration.

SUBMISSION OF DOCUMENTS: Your offer must include the following documentation and information:

1. Completed SF-1442
2. Technical Proposal
3. Capabilities and Experience
4. Subcontractor Use and Work History Together
5. Past Performance Questionnaires
6. Cost Proposal to include a detailed breakout of the prime and subcontractor costs

PLEASE NOTE: The SF-1442 must be signed, and dated, and Blocks 14 through 20c must be completed.

SF-1442, ITEM 17, Offeror is cautioned to review acceptance time stated in Item 13d before completing this item. Proposals offering less than specified time will cause proposal to be rejected.

SUBMIT AN OFFER TO THE FOLLOWING EMAIL: yujeiry_eusebio@ios.doi.gov

BONDING – Successful offeror will be required to furnish Performance and Payment bonds on Standard Forms 25 and 25A based on total contract amounts in the following ranges: 100 percent performance bond, 100 percent payment bond. Offerors are now advised that the Government will inspect, accept, and take possession of completed work and release the bonding on completion/acceptance of the work per FAR 28.203-5.

Site Superintendent for the project must be the prime contractor's employee. No Exceptions will be made.

THERE WILL BE A SITE VISIT SCHEDULED ON **May 15, 2026, at 10:00 a.m. ET**. See **site visit instructions in Section L on page 33 of this document**. Contractors must contact the Contracting Officer representative (COR) via email to confirm their attendance at the scheduled site visit by **May 14, 2026, at 12:00 p.m. ET**. If no emails confirming attendance are received by the specified date, the site visit will be cancelled.

Contracting Officer Representative (COR): – Jonathan Campos – E: Jonathan_Campos@nps.gov.
Ph: (305)242-7788

Submit all questions regarding this solicitation to the Contracting Officer via email. You must submit questions by **May 20, 2026, by 4:00 p.m. ET with subject line: "Questions 140P5426R0007"**. Questions submitted after this time may NOT be considered. Answers to the questions submitted in writing will be posted to the solicitation as an amendment on or around **May 25, 2026**.

PROPOSALS ARE DUE June 5, 2026, AT 4:00 p.m. ET.

B – Bid Schedule

The contractor should provide all labor, parts, tools, equipment, supervision, and all incidentals necessary to replace the generators and components within EVER per the attached statement of work documentation.

Price Schedule					
Proposal Submittal Instructions: All proposals shall follow the RS Means, Master Format, WBS with costs broken down by Division 1 through 50 as applicable. Proposals shall also include a price for both the Total Direct Construction Cost (cost minus any markups) and the Total Net Construction Cost. Markups shall be broken down to include overhead, profit, bonding, and other as applicable. Sales taxes are not applicable.					
Contract Line-Item Number	Contract Line Item	Quantity	Unit of Measure	Unit Price	Total Price
010	Replace Generator – Pine Island Maintenance Yard	1	Lump Sum		
020	Replace Generator – Daniel Beard Center	1	Lump Sum		
030	Replace Generator – Visitor Center	1	Lump Sum		
Additive	Purchase Portable Generators	4	Each		
TOTAL COMBINED PROPOSED PRICE:					
ESTIMATED COMPLETION					

NOTE: Contractors must submit a complete cost breakout that includes both prime contractor and any applicable subcontractor pricing with their cost proposal. Overhead and profit must be a separate line item.

C – Specifications and Drawings

Statement of Work

Attachment 001

Drawings

Attachment 002

D - Packaging and Marking

Payment and Postage Fees

All postage and fees related to submitting information forms, reports, etc., to the Contracting Officer (CO), Contract Specialist (CS), or the Contracting Officer's Representative (COR) shall be paid by the contractor.

Marking

All information submitted to the CO, CS, or the COR shall clearly indicate the contract's Contract Number for which the information is being submitted.

E - Inspection and Acceptance

52.246-12 Inspection of Construction. (AUG 1996)

F - Deliveries or Performance

52.211-10 Commencement, Prosecution, and Completion of Work. (APR 1984)

The Contractor shall be required to (a) commence work under this contract within **10 calendar days** after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than **364 calendar days** after issuance of the notice to proceed. The time stated for completion shall include final cleanup of the premises.

(End of clause)

52.211-13 Time Extensions. (SEP 2000)

52.211-18 Variation in Estimated Quantity. (APR 1984)

52.242-14 Suspension of Work. (APR 1984)

G - Contract Administration Data

Contracting Officer's Representative (COR) for this contract will be determined at time of award.

Contracting Officer responsible for administering this contract:

Yujeiry Eusebio

Contracting Officer

National Park Service

Con Ops East, South MABO

Work: (470) 819-0940

Yujeiry_eusebio@ios.doi.gov

Technical Direction

The performance of the required work shall be subject to the COR's or designee's technical direction and surveillance. As used herein, "technical direction" is direction to the Contractor which requires pursuit of certain lines of inquiry, filing in detail or otherwise serving to accomplish the contract specifications. The technical direction, to be valid:

- (a) Must be issued in writing consistent with the general scope of the work set forth in the contract.
- (b) May not constitute a new assignment of work changes to the expressed terms, conditions, or specifications incorporated into this contract.
- (c) Shall not constitute a basis for extension of the contract delivery schedule.

Nothing contained in this part authorizes the Contractor to incur costs more than the contract price or other limitations of funds set forth in the contract due to extra work performed in response to informal directions, suggestions, or instructions (oral or written) given by representatives of the CO, unless before commencing such work, the Contractor:

- 1) directly notifies the CO.
- 2) requests a formal contract modification.
- 3) receives written authorization to proceed from the CO.

Correspondence

Any correspondence initiated by the Contractor shall include the Contract Number and shall be addressed to the Contracting Officer via email.

Contract Payments

The Contractor shall submit invoices to the COR for the percentage of work completed. Contractor and COR at the site must agree on the percentage of work completed.

Job Site Administration

The COR will be available at the site to inspect the work as it progresses. The COR is not authorized to make technical decisions or give technical directions. The Contractor or the Contractor's Superintendent must contact the COR about the decisions and directions.

The Contractor shall have a competent superintendent (the "Contractor's Superintendent") who is (1) deemed acceptable to the Government; (2) authorized to act on the Contractor's behalf; and (3) to always be present on the job site when contract work is being performed.

Subcontracting

The Prime Contractor shall complete a Standard Form (SF1413) for each subcontractor and submit the form to the Contracting Officer. No subcontractor shall be allowed on the site without an executed SF 1413. The Prime shall be held responsible for ensuring that their subcontractor's DO NOT subcontract any portion of this work. The Prime Contractor is responsible to ensure that all subcontractors carry sufficient insurance in accordance with this contract.

H - Special Contract Requirements

Executive Order 13513 Prohibition on Text Messaging and Using Electronic Equipment supplied by the Government While Driving as Prescribed in Federal Leadership on Reducing Text Messaging While Driving

Prohibition on text messaging and using electronic equipment supplied by the Government while driving (OCT 2009)

This Executive Order introduces a Federal Government-wide Prohibition on the use of text messaging while driving on official business or while using Government –supplied equipment. Additional guidance enforcing the ban will be issued at a later date. In the meantime, please adopt and enforce policies that immediately ban text messaging while driving company-owned or –rented vehicles, government-owned or leased vehicles, or while driving privately owned vehicles when on official government business or when performing any work for or on the behalf of the government.

(End of order)

Safety

The Contractor is responsible for establishing and maintaining compliance with all applicable laws, regulations, rules, and standards, including without limitation, those regulations, rules, and standards, promulgated for the administration and enforcement of the following laws: the Occupational Safety and Health Act (OSHA) or Federally approved State equivalent(s) thereof; the Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) as amended by Superfund Amendments and Reauthorization Act (SARA); Emergency Planning and Community Right- to-Know Act (EPCRA); Clean Air Act (CAA); Clean Water Act (CWA) and Toxic Substances Control Act (TSCA); and Solid Waste Disposal Act (SWDA), as amended by Resource Conservation and Recovery Act (RCRA).

Progress Meetings

- (a) The Contractor shall be available to meet with the CO or his/her representative at the job site during construction to discuss work progress.
- (b) Meetings will be scheduled by the CO with timely notification to the Contractor.
- (c) At the progress meetings, the Contractor shall give oral reports of the progress on the project to the CO. If the work is behind schedule, the Contractor shall be prepared to:
 - (i) discuss the work and any causes of work delay(s);
 - (ii) present a plan to bring the work back into conformance with the schedule; or, if necessary
 - (iii) to propose a revised work schedule.

Payrolls

The Contractor must furnish copies of his weekly payrolls to the CO. Payroll submission is required weekly, seven calendar days after the payroll period closes.

Operation of Facility During Construction

Construction activities must not interrupt the function and the facility's daily operations during construction.

The contractor must coordinate with the COR for any temporary measures. All temporary measures employed shall be at the Contractor's expense and shall be removed upon completion of the contract.

Work Hours

Normal work hours are from 7:30 a.m. through 4:00 p.m., Monday through Friday. Contractor will not be permitted to work at the job site on Saturday, Sunday, or legal holidays unless the CO authorized otherwise.

Use of Premises

- (a) Before any location, other than shown in the photos or during the site visit, is accessed, written permission shall be obtained through the Contracting Officer. Such permission, if granted, will be without charge to the Contractor.
- (b) Unless provided otherwise, the Contractor shall provide and maintain a sanitary working environment for the workforce at the site. Solid waste shall be disposed of in accordance with applicable federal, state, and local regulations.

Maximum Work Week

The maximum work week that will be approved is 40 hours. The Contractor's proposed hours of work are to include daily starting and stopping times.

Excavation and Utility Clearances

The Chief of Maintenance, for each park, shall ensure that the Contractor is provided with necessary excavation and utility clearances. The Contractor shall request such clearances and staking in writing to the Contracting Officer no less than ten (10) calendar days before the date which he/she anticipates commencement of work. The Contractor will not proceed with excavation of any kind until such clearances have been issued. Clearances will be valid from the date of issue or completion of or otherwise directed by the issuing authority.

Disposal

Contractors will dispose of all debris, rubbish and non-useable material from the site and all federal property in a manner that meets federal, state, county, and local laws.

Contractor Employees

- (a) The Contractor shall provide the Contracting Officer with the name of the responsible supervisor authorized to act for the Contractor.
- (b) The Contractor shall furnish sufficient personnel to perform, supervise and manage all work.
- (c) Contractor employees shall conduct themselves properly, efficiently, courteously, and professionally.
- (d) The Contractor shall remove from the site any individual whose continued employment is deemed by the contracting officer to be contrary to public interest or inconsistent with the National Park Service.

Permits

The contractor shall, without additional expense to the government, obtain all appointments, licenses, and permits required to perform work under this contract. The contractor shall follow federal, state, and local laws. Evidence of such permits and licenses shall be provided to the CO before work commences, or as requested. The contractor will always display the permits and license on the job site.

Quality of Work

Workmanship shall be of the highest quality and best practices of the trade. Contractor shall conform to all requirements of the state and county code, ANSI A 10.6 and applicable codes of the National Fire Protection Association. All replacement materials shall conform to the manufacturer specifications and standards. Substitute items shall be equal to or better than the original material and must be approved by the Government.

Completion of Work

The time stated for completion of the project includes all material procurement, payroll records, corrections of all discrepancies (Punch List Items), and final clean up on premises as stated in the clause "Commencement, Prosecution and Completion of Work", FAR 52.211-10 (APR 1984) Section F.

Material Approval Submittals

The submittals contemplated by the clause herein entitles "Materials and Workmanship", FAR 52.236-5 (APR 1984), Section I, shall be submitted to the Contracting Officer through the COR in 5 copies. The Denver Service Center Form (DSC-1) entitled "Transmittal USDI, National Park Service", shall be used. Contractor shall re-submit any disapproved submittals within 7 calendar days of disapproval.

Archeological Findings

Petroglyphs, artifacts, burial grounds or remains, structural features, ceremonial, domestic, and archeological objects of any nature, historic or prehistoric, found within the construction area, are the property of and will be removed and only by the Government. Should Contractor's operations uncover, or his employees find any archeological remains, Contractor shall suspend operations at the site of discovery; notify Contracting Officer immediately of the findings; and continue operation in other areas. Included with the notification shall be a brief statement of the location and details of the findings. Should the temporary suspension of work at the site result in delays, or the discovery site require archeological studies resulting in delays or additional work for the contractor, he will be compensated by an equitable adjustment under the General Provision of the Contract.

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice: COR approved invoice.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

I - Contract Clauses

52.252-2 Clauses Incorporated by Reference (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. On request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/>

1452.201-70 Authorities and Delegations (SEP 2011)

1452.203-70 Restrictions on Endorsements (JUL 1996)

1452.215-70 Examination of Records by the Department of the Interior (APR 1984)

1452.224-1 Privacy Act Notification (JUL 1996) Deviation

1452.236-70 Prohibition Against Use of Lead-based Paint (JUL 1996)

52.201-1 Acquisition 360: Voluntary Survey (SEP 2023)

52.202-1 Definitions (JUN 2020)

52.203-3 Gratuities. (APR 1984)

52.203-5 Covenant Against Contingent Fees. (MAY 2014)

52.203-7 Anti-Kickback Procedures. (JUN 2020)

52.203-8 Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity. (MAY 2014)

52.203-10 Price or Fee Adjustment for Illegal or Improper Activity. (MAY 2014)

52.203-12 Limitation on Payments to Influence Certain Federal Transactions. (JUN 2020)

52.203-16 Preventing Personal Conflicts of Interest. (JUN 2020)

52.203-17 Contractor Employee Whistleblower Rights. (NOV 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)

52.204-1 Approval of Contract. (DEC 1989)

This contract is subject to the written approval of the Contracting Officer and shall not be binding until so approved.

(End of clause)

52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards. (JUN 2020)

52.204-13 System for Award Management Maintenance. (OCT 2018)

52.204-14 Service Contract Reporting Requirements. (OCT 2016)

52.204-18 Commercial and Government Entity Code Maintenance. (AUG 2020)

52.204-19 Incorporation by Reference of Representations and Certifications. (DEC 2014)

52.204-23 Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities. (DEC 2023)

52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021)

52.204-27 Prohibition on a ByteDance Covered Application. (JUN 2023)

52.204-30 Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023)

(a) *Definitions.* As used in this clause-

Covered article, as defined in 41 U.S.C. 4713(k), means-

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following-

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;

- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency-

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.* (1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

- (i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.
- (ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.* (1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.* (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor

shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

52.208-9 Contractor Use of Mandatory Sources of Supply or Services. (MAY 2014)

52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (JAN 2025)

52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters. (OCT 2018)

52.209-10 Prohibition on Contracting with Inverted Domestic Corporations. (NOV 2015)

52.215-2 Audit and Records - Negotiation. (JUN 2020)

52.219-6 Notice of Total Small Business Set-Aside. (NOV 2020)

52.219-8 Utilization of Small Business Concerns. (JAN 2025)

52.219-14 Limitations on Subcontracting. (OCT 2022)

52.219-28 Postaward Small Business Program Rerepresentation. (JAN 2025)

52.219-33 Nonmanufacturer Rule. (SEP 2021)

52.222-1 Notice to the Government of Labor Disputes. (FEB 1997)

52.222-3 Convict Labor. (JUN 2003)

52.222-4 Contract Work Hours and Safety Standards - Overtime Compensation. (MAY 2018)

52.222-6 Construction Wage Rate Requirements. (AUG 2018)

52.222-7 Withholding of Funds. (MAY 2014)

52.222-8 Payrolls and Basic Records. (JUL 2021)

52.222-10 Compliance with Copeland Act Requirements. (FEB 1988)

52.222-11 Subcontracts (Labor Standards). (MAY 2014)

52.222-12 Contract Termination - Debarment. (MAY 2014)

52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations. (MAY 2014)

52.222-14 Disputes Concerning Labor Standards. (FEB 1988)

52.222-15 Certification of Eligibility. (MAY 2014)

52.222-35 Equal Opportunity for Veterans. (JUN 2020)

52.222-36 Equal Opportunity for Workers with Disabilities. (JUN 2020)

52.222-37 Employment Reports on Veterans. (JUN 2020)

52.222-40 Notification of Employee Rights Under the National Labor Relations Act. (DEC 2010)

52.222-50 Combating Trafficking in Persons. (OCT 2025)

52.222-54 Employment Eligibility Verification. (JAN 2025)

52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026. (JAN 2022)

52.222-62 Paid Sick Leave Under Executive Order 13706. (JAN 2022)

52.223-2 Reporting of Biobased Products Under Service and Construction Contracts. (MAY 2024) (DEVIATION FEB 2025)

52.223-3 Hazardous Material Identification and Material Safety Data. (FEB 2021)

52.223-3 Hazardous Material Identification and Material Safety Data. (FEB 2021) - Alternate I (JUL 1995)

52.223-5 Pollution Prevention and Right-to-Know Information. (MAY 2024)

52.223-20 Aerosols. (MAY 2024)

52.223-21 Foams. (MAY 2024)

52.225-9 Buy American - Construction Materials. (OCT 2022)

52.225-13 Restrictions on Certain Foreign Purchases. (FEB 2021)

52.227-1 Authorization and Consent. (JUN 2020)

52.228-2 Additional Bond Security. (OCT 1997)

52.228-11 Individual Surety-Pledge of Assets. (FEB 2021)

52.228-12 Prospective Subcontractor Requests for Bonds. (DEC 2022)

52.228-14 Irrevocable Letter of Credit. (NOV 2014)

52.228-15 Performance and Payment Bonds - Construction. (JUN 2020)

52.229-3 Federal, State, and Local Taxes. (FEB 2013)

52.232-5 Payments Under Fixed-Price Construction Contracts. (MAY 2014)

52.232-16 Progress Payments. (NOV 2021)

52.232-16 Progress Payments. (NOV 2021) - Alternate I (MAR 2000)

52.232-17 Interest. (MAY 2014)

52.232-23 Assignment of Claims. (MAY 2014)

52.232-27 Prompt Payment for Construction Contracts. (JAN 2017)

52.232-33 Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)

52.232-39 Unenforceability of Unauthorized Obligations. (JUN 2013)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)

52.233-1 Disputes. (MAY 2014)

52.233-1 Disputes. (MAY 2014) - Alternate I (DEC 1991)

52.233-3 Protest After Award. (AUG 1996)

52.233-3 Protest After Award. (AUG 1996) - Alternate I (JUN 1985)

52.233-4 Applicable Law for Breach of Contract Claim. (OCT 2004)

52.236-1 Performance of Work by the Contractor. (APR 1984)

52.236-2 Differing Site Conditions. (APR 1984)

52.236-3 Site Investigation and Conditions Affecting the Work. (APR 1984)

52.236-5 Material and Workmanship. (APR 1984)

- 52.236-6** Superintendence by the Contractor. (APR 1984)
- 52.236-7** Permits and Responsibilities. (NOV 1991)
- 52.236-8** Other Contracts. (APR 1984)
- 52.236-9** Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements. (APR 1984)
- 52.236-10** Operations and Storage Areas. (APR 1984)
- 52.236-11** Use and Possession Prior to Completion. (APR 1984)
- 52.236-12** Cleaning Up. (APR 1984)
- 52.236-13** Accident Prevention. (NOV 1991)
- 52.236-14** Availability and Use of Utility Services. (APR 1984)
- 52.236-17** Layout of Work. (APR 1984)
- 52.236-21** Specifications and Drawings for Construction. (FEB 1997)
- 52.236-21** Specifications and Drawings for Construction. (FEB 1997) - Alternate I (APR 1984)
- 52.242-13** Bankruptcy. (JUL 1995)
- 52.243-4** Changes. (JUN 2007)
- 52.244-2** Subcontracts. (JUN 2020)
- 52.244-6** Subcontracts for Commercial Products and Commercial Services. (OCT 2025)
- 52.248-3** Value Engineering - Construction. (OCT 2025)
- 52.249-2** Termination for Convenience of the Government (Fixed-Price) (APR 2012)
- 52.249-2** Termination for Convenience of the Government (Fixed-Price) – Alternate I (SEP 1996)
- 52.249-10** Default (Fixed-Price Construction). (APR 1984)
- 52.252-4** Alterations in Contract. (APR 1984)
- 52.252-6** Authorized Deviations in Clauses. (NOV 2020)
- 52.253-1** Computer Generated Forms. (JAN 1991)
- 1452.204-70** Release of Claims – Department of the Interior (JUL 1996)

After completion of work and before final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

1452.228-70 Liability Insurance (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

1. Worker's compensation and employer's liability: \$1,000,000
2. General Liability: \$500,000 each person and \$1,000,000 each occurrence
3. Property Damage: \$2,000,000

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 calendar days before the effective date of cancellation or

termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number, and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate before beginning the work.

(c) The contractor shall name the United States, National Park Service, as the insured party(ties) on the liability insurance policy.

J - List of Documents, Exhibits and Other Attachments

List of Documents, Exhibits, and Other Attachments

Attachment Number	Title	Date	Number of Pages	Document Version
001	Statement of Work	04/09/2026	28	BASE
002	Drawings	04/09/2026	1	BASE
003	Past Performance Questionnaire	04/09/2026	4	BASE
004	Wage Determination	04/09/2026	6	BASE

K - Representations, Certifications, and Other Statements of Bidders

52.204-8 Annual Representations and Certifications.

As prescribed in [4.1202\(a\)](#), insert the following provision:

ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025)

- (a) (1) The North American Industry Classification System (NAICS) code for this acquisition is 238290.
- (2) The small business size standard is \$22M.
- (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition—
- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
 - (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
 - (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
- (b) (1) If the provision at [52.204-7](#), System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.
- (2) If the provision at [52.204-7](#), System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:
- (i) ☐ Paragraph (d) applies.
 - (ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.
- (c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:
- (i) [52.203-2](#), Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—
 - (A) The acquisition is to be made under the simplified acquisition procedures in [part 13](#);
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.
 - (ii) [52.203-11](#), Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$200,000.

- (iii) [52.203-18](#), Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) [52.204-3](#), Taxpayer Identification. This provision applies to solicitations that do not include the provision at [52.204-7](#), System for Award Management.
- (v) [52.204-5](#), Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) [52.204-26](#), Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) [52.209-2](#), Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) [52.209-5](#), Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) [52.209-11](#), Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) [52.214-14](#), Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) [52.215-6](#), Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) [52.219-1](#), Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) [52.219-2](#), Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#).
- (xiv) [52.222-22](#), Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at [52.222-26](#), Equal Opportunity.
- (xv) [52.222-25](#), Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at [52.222-26](#), Equal Opportunity.

(xvi) [52.222-38](#), Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) [52.223-1](#), Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at [52.223-2](#), Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) [52.223-4](#), Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [52.223-22](#), Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at [52.204-7](#).

(xx) [52.225-2](#), Buy American Certificate. This provision applies to solicitations containing the clause at [52.225-1](#).

(xxi) [52.225-4](#), Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at [52.225-3](#).

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) [52.225-6](#), Trade Agreements Certificate. This provision applies to solicitations containing the clause at [52.225-5](#).

(xxiii) [52.225-20](#), Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) [52.225-25](#), Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) [52.226-2](#), Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

___ (i) [52.204-17](#), Ownership or Control of Offeror.

___ (ii) [52.204-20](#), Predecessor of Offeror.

___ (iii) [52.222-18](#), Certification Regarding Knowledge of Child Labor for Listed End Products.

___ (iv) [52.222-48](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

___ (v) [52.222-52](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

___ (vi) [52.227-6](#), Royalty Information.

___ (A) Basic.

___ (B) Alternate I.

___ (vii) [52.227-15](#), Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR [4.1201](#)); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

(End of provision)

52.204-20 Predecessor of Offeror. (AUG 2020)

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code means-

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: [(or mark "Unknown")].

Predecessor legal name: [(Do not use a "doing business as" name)].

(End of provision)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered

products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

- (i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

- (i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
- (ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) *Representations.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any

equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered

telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation. (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) *Representations.* (1) The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.* (1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM) (<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
- (2) Name of the covered article or source subject to a FASCSA order;
- (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
- (4) Brand;
- (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
- (6) Item description;
- (7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

- (1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
 - (i) In a criminal proceeding, a conviction.
 - (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or

more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. (JUN 2020)

52.236-28 Preparation of Proposals - Construction. (OCT 1997)

L - Instructions, Conditions, and Notices to Bidders

Although brand names may be mentioned in the specifications and drawings of this solicitation, contractors are not mandated to submit only those specific brand names for consideration and are encouraged to submit materials that are equal to those brand names when bidding on this project.

All complete proposal submissions shall include: three (3) sections addressing the factors listed in Section M of the solicitation: Section I-Technical Proposal, Section II-Past Performance, and Section III-Cost Proposal.

Section I: Technical Proposal (Not to exceed 20 pages)

Technical proposal shall address the work to be accomplished in the specifications and address the evaluation criteria (Technical Approach) listed in section M of this solicitation. Offerors shall provide a list of subcontractors planned for use on this project. Offerors should describe the number of years or previous contracts that the offeror and subcontractor(s) have teamed together (state clearly if this is the first time you have teamed together). A technical proposal that is not complete will not be evaluated.

Section II: Past Performance

The offeror should provide **three (3) relevant past performance references** as part of its proposal submission. References must demonstrate experience on projects of similar magnitude and nature, involving comparable technical requirements, disciplines, and performance conditions as described in the specifications for this contemplated contract, and must be completed within five (5) years of the issuance date of this solicitation. At least one reference shall reflect experience performing work in remote geographic locations with logistical complexity requiring coordination with project stakeholders.

For each reference, the offeror shall provide the client/organization name, project title, period of performance, brief description of work performed, and a current point of contact (name, title, phone number, and email). The Government will evaluate past performance based on the quality, relevance, and recency of the references provided.

Offerors are cautioned that in conducting the past performance questionnaire the Government may use data provided in the offerors proposal and data obtained from other sources, such as the Contractor Performance Assessment Reporting System (CPARS) or similar systems. Since the Government may not necessarily interview all the sources provided by the offerors, it is incumbent upon the offerors to explain the relevance of the data provided. Offerors are reminded that while the Government may elect to consider data obtained from

other sources, the burden of proving low performance risk rests with the offerors.

Section III: Cost Proposal

All contractors are required to provide a detailed cost proposal with a breakout of costs associated with general conditions, materials, labor, overhead, profit, bonding, and insurance. All contractors must complete this section as part of their cost proposal. Costs will be evaluated against current industry standards. In cases of a perceived discrepancy, offerors may be asked to clarify costs based on the findings of the Government. Additionally, all offerors must submit with their proposal, a signed SF-1442 solicitation and signed amendments to the solicitation if applicable,

Proposal File Format:

- Page setup parameters:
- Margins Top, Bottom, Left, Right - 1
- Gutter 0
- From Edge Header, Footer - 0.5
- Page Size, Width 8.5
- Page Size, Height 11

Font may be no smaller than 10-point font. Proposal shall be legible and file format shall be in Acrobat Reader (pdf). Proposals must not exceed 20 pages. Company logos are prohibited except on the title page. Pages that exceed the margin, font or total page limit will not be evaluated. Page count will NOT be based upon the numbers of pages printed but rather dictated by the number of pages in a print layout view in the application based upon the above prescribed document settings. Counting pages in the order they appear for viewing will make up the page count. Drawing, tables, and figures may be attached to proposals when applicable and will not count towards the page count. Cost and past performance questionnaires will not count towards the page count of the proposal.

1452.215-71 Use and Disclosure of Proposal Information – Department of the Interior (APR 1984)

1452.233-02 Service of Protest – Department of the Interior (JUL 1996) (DEVIATION)

a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accounting Office (GAO), shall be served on the Contracting Officer at National Park Service, South Major Acquisition Office, 40001 SR9336, Homestead, FL 33034 by obtaining written and dated acknowledgment of receipt from NPS.

b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor for Procurement and Patents, 1849 C Street, NW, Room 6511, Washington, D.C. 20240.

52.204-7 System for Award Management. (NOV 2024)

52.204-16 Commercial and Government Entity Code Reporting. (AUG 2020)

52.204-22 Alternative Line Item Proposal. (JAN 2017)

52.214-3 Amendments to Invitations for Bids. (DEC 2016)

52.214-4 False Statements in Bids. (APR 1984)

52.214-5 Submission of Bids. (DEC 2016)

52.214-6 Explanation to Prospective Bidders. (APR 1984)

52.214-7 Late Submissions, Modifications, and Withdrawals of Bids. (NOV 1999)

52.214-18 Preparation of Bids - Construction. (APR 1984)

52.215-1 Instructions to Offerors - Competitive Acquisition. (NOV 2021)

52.216-1 Type of Contract. (APR 1984)

The Government contemplates award of a firm fixed price construction contract resulting from this solicitation.

(End of provision)

52.222-5 Construction Wage Rate Requirements-Secondary Site of the Work. (MAY 2014)

52.225-10 Notice of Buy American Requirement - Construction Materials. (MAY 2014)

52.228-1 Bid Guarantee. (SEP 1996)

52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee). (FEB 2021)

52.232-13 Notice of Progress Payments (APR 1984)

52.233-2 Service of Protest. (SEP 2006)

52.236-27 Site Visit (Construction). (FEB 1995)

52.236-27 Site Visit (Construction). (FEB 1995) - Alternate I (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) An organized site visit has been scheduled for May 15, 2026, at 10:00 a.m. at the Visitor Center of Everglades National Park. Address: 40001 State Road 9336, Homestead, FL 33034.

(c) Participants must email the CO, Yujeiry *Tony* Eusebio, at Yujeiry_eusebio@ios.doi.gov and COR to confirm their attendance at the scheduled site visit by May 14, 2026, at 12:00 p.m. If no emails confirming attendance are received by the specified date, the site visit will be cancelled.

COR : Jonathan Campos – E: Jonathan_Campos@nps.gov; Ph: 305-242-7788

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[Home | Acquisition.GOV](#)

(End of provision)

52.252-3 Alterations in Solicitation. (APR 1984)

Portions of this solicitation are altered as follows: []

(End of provision)

52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any [insert regulation name] (48 CFR chapter []) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

M - Evaluation Factors for Award**Basis for Contract Award – Proposal Evaluation Criteria**

The techniques and procedures described under FAR 15.404-1 will be the primary means of assessing proposal reasonableness. The Government intends to award a contract without discussion with respective offerors to the most suitable contractor per the evaluation process; however, the contracting officer reserves the right to establish a competitive range and open discussions with offerors if it is deemed necessary. The Government's technical evaluation committee will evaluate the proposals submitted against the following evaluation criteria:

Factor A – Technical Approach

Evaluation of this factor will be based on the offeror's description of their technical approach to the project. Offerors are encouraged to provide detailed specific information. Failure to provide sufficient information so that the evaluation team cannot discern if the offeror has a thorough understanding of the work in question may lead to the proposal receiving a lower rating. Information provided in the Technical Proposal should be relevant to the specifications of the project. The Government will evaluate the offeror's means and methods to accomplish the construction project, including selection of subcontractor(s) and their role in the project. Estimated time of completion will also be considered.

Factor B – Past Performance, Experience, and Technical Capability

The Government will evaluate the offeror's past performance based on demonstrated experience performing projects similar in scope, magnitude, and complexity to the requirements of this solicitation. Offerors shall submit descriptions of at least three (3) similar projects completed within the past five (5) years, including project scope, size, location, performance outcomes, and the roles fulfilled by proposed key personnel. References with current client points of contact shall be provided. Projects should demonstrate experience performing culvert or comparable drainage conduit cleaning and inspection work, including performance in remote or logistically complex environments requiring coordination with stakeholders.

The Government may also consider relevant past performance information obtained from other sources. Offerors will be afforded an opportunity to address adverse past performance information to which they have not previously had an opportunity to respond.

Past performance will be evaluated for recency, relevancy, and quality, and confidence ratings will be assigned. In accordance with FAR 15.305(a)(2), an offeror without a record of relevant past performance or for whom information is not available will receive a Neutral confidence rating (neither favorable nor unfavorable). Greater confidence may be assigned to proposals demonstrating highly relevant, successful past performance.

Factor C – Cost Proposals

Evaluation of this factor will be based on the reasonableness of the detailed cost proposal. Cost will be evaluated for reasonableness through a comprehensive comparison of each proposal received. Reasonableness will be determined based on costs submitted by the competition, current market conditions, and comparison to the Government estimate. Offerors must provide a cost breakout to include all costs associated with their proposal.

Each proposal shall be evaluated to ensure that all information provided in the RFP has been addressed, is accurate and complete, and each individual cost category under each division is properly identified (e.g., design, general requirements, concrete, masonry, mechanical, electrical, site work, etc.). Offerors shall identify the subtotal cost for each standard construction division, and the aggregate total cost for each phase of the overall project. The proposed costs will also be evaluated using the cost techniques listed at Federal Acquisition Regulation (FAR) 15.404-1 (b)(2)(i), (b)(2)(v), and (b)(2)(vi). The offeror's total cost shall be identified by divisions as shown in the project specifications schedule.

Relative Weight of Evaluation Criteria

All evaluation factors other than cost, when combined, are "significantly more important" than cost. All non-cost factors will be combined and evaluated as an overall technical proposal rating. Thereafter, cost will be considered after each technical proposal has been evaluated and scored. The best value is determined by comparing differences in the value of non-cost features with differences in cost to the Government. In making this comparison, the Government is more concerned with obtaining superior non-cost features than with making an award at the lowest overall cost to the Government.

However, the Government will not make an award at a significantly higher overall cost to achieve slightly superior non-cost features. Therefore, cost is not expected to be the controlling factor in the selection of an Offeror, but the degree of importance of cost as a factor could become greater depending upon the equality of the proposals for other factors evaluated. When competing proposals are determined to be substantially equal after evaluation of all non-cost factors, the cost could become the controlling factor.

Evaluation Standards

Rating: For purposes of this solicitation, ratings will consist of an adjectival rating in conjunction with a narrative.

(1) Technical Ratings. The ratings below include the consideration of risk in conjunction with the strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in an offeror's proposal. These shall be used on all technical factors and sub-factors and sufficient documents supporting these ratings shall be included with the ratings:

Adjectival Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the

	requirements, and risk of unsuccessful performance is high. Proposal is unawardable without discussions.
Unacceptable	Proposal does not meet requirements of the solicitation and thus contains one or more deficiencies, and risk of unsuccessful performance is unacceptable. Proposal is unawardable without discussions.

(2) Past Performance Evaluations shall address the following three items.

- (i) **Recency:** Recency is generally expressed as a time during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information.
- (ii) **Relevance:** In establishing what is relevant for the acquisition, consideration should be given to those aspects of an offeror's history of contract (or subcontract) performance that would provide the most context and give the greatest ability to measure whether the offeror will successfully satisfy the current requirement. Common aspects of relevancy include, but are not limited to, the following: similarity of product, service, support, complexity, dollar value, contract type, use of key personnel (for services), and extent of subcontracting.
- (iii) **Quality:** The past performance evaluation conducted in support of a current source selection does not establish, create, or change the existing record and history of the offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the offeror performed those past contracts. Requirements for considering history of small business utilization are outlined at FAR 15.304(c)(3)(ii). The Past Performance Evaluation will review all past performance information collected and determine the quality of the offeror's performance, general trends, and usefulness of the information.

Once the past performance evaluation is completed, one of the following ratings shall be assigned.

Performance Confidence Assessments Rating

Rating	Adjectival Rating	Description
	Substantial Confidence	Based on the offeror's recent performance record, the Government has high expectations that the offeror will successfully perform the required effort.
	Satisfactory Confidence	Based on the offeror's recent performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
	Limited Confidence	Based on the offeror's recent performance record, the Government has low expectation that the offeror will successfully perform the required effort.
	No Confidence	Based on the offeror's recent performance record, the Government has little or no expectation that the offeror will be able to successfully perform the required effort.
	Neutral Confidence	No recent performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.

Additional Information

- A. The Source Selection Authority shall make an integrated best value award decision to meet the goal of awarding the contemplated contract.
- B. Offerors are cautioned to submit sufficient information, in the format specified by Section L, Proposal Preparation Instructions.
- C. Offeror's may be asked to clarify certain aspects of their proposal (for example, the relevance of past performance information) or respond to adverse past performance information to which the offeror has not previously had an opportunity to respond. Communication conducted to resolve minor or clerical errors will not constitute discussions and the contracting officer reserves the right to award a contract without the opportunity for proposal revision.
- D. System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.